Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard on Wednesdays at 9:00 a.m.

Date: June 24, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Arroyo vs. General Motors, LLC	**OFF CALENDAR**
2	Watanabe vs. Maserati North America, Inc.	**TENTATIVE RULING:** For the reasons set forth below, Defendant Maserati North America, Inc.'s demurrer to Plaintiff Neil Watanabe's First Amended Complaint is SUSTAINED, with 30-days leave to amend. **Statement of Law** In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer only tests the sufficiency of the pleadings. (See *Satyadi v. West Contra Costa Healthcare District* (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable]). **2nd COA – Violation of Cal. Com. Code § 2313** This section provides:

		(1) Express warranties by the seller are created as follows: (a) Any affirmation of fact or promise made by the seller to the buyer which relates to the goods and becomes part of the basis of the bargain creates an express warranty that the goods shall conform to the affirmation or promise. (b) Any description of the goods which is made part of the basis of the bargain creates an express warranty that the goods shall conform to the description. (c) Any sample or model which is made part of the basis of the bargain creates an express warranty that the whole of the goods shall conform to the sample or model. (2) It is not necessary to the creation of an express warranty that the seller use formal words such as "warrant" or "guarantee" or that he have a specific intention to make a warranty, but an affirmation merely of the value of the goods or a statement purporting to be merely the seller's opinion or commendation of the goods does not create a warranty. (Cal. U. Com. Code, § 2313.) "The essential elements of a cause of action under the California Uniform Commercial Code for breach of an express warranty to repair defects are (1) an express warranty [citation] to repair defects given in connection with the sale of goods; (2) the existence of a defect covered by the warranty; (3) the buyer's notice to the seller of such a defect within a reasonable time after its discovery [citation]; (4) the seller's failure to repair the defect in compliance with the warranty; and (5) resulting damages [citations]." (*Orichian v. BMW of North America, LLC* (2014) 226 Cal.App.4th 1322, 1333–1334). Defendant contends that this cause of action fails because Plaintiff failed to allege any privity between Defendant and Plaintiff as the buyer. Recently, courts have held that: The Commercial Code's express warranty provisions are limited to warranties given by the seller directly to the buyer. [Citations.] Moreover, "the warranty sections ... are not designed in any way to disturb those lines of law growth which have recognized that *warranties need not be confined either to sales*

> *contracts or to the direct parties to such a contract*." [Citation.] In other words, while express warranties apply under the Commercial Code only to a seller in privity with the buyer, the buyer may sue a third-party manufacturer for breach of an express warranty in the absence of privity. [Citation.]

(*Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1216-1217, italics in original). The court went on to state: "Similarly, implied warranties arise under the Commercial Code only for a merchant or seller in privity with the buyer." (*Id.* at 1217).

In *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825, a motion to compel arbitration case, Nissan argued that equitable estoppel applied to preclude the buyer from contesting arbitration because manufacturer warranties are considered part of a retail sale contract under Division 2 of the California Uniform Commercial Code. (*Id.* at 837-838). The court rejected this argument, holding that "Division 2 of the UCC governs the relationship of the parties to a sale, and its warranty provisions are limited to warranties given directly by the seller to the buyer. The UCC's express warranty provision by its terms applies only to '[e]xpress warranties by the seller ....' (Cal. U. Com. Code, § 2313, subd. (1)(a), italics added.) 'The section gives a cause of action only against 'the seller.' ' (White, et al., Uniform Commercial Code (6th ed. 2023) § 10:10.)." (*Id.* at 838).

Plaintiff alleges the following in his First Amended Complaint:

"Privity is not required here because Plaintiff is the intended third-party beneficiary of contracts between Defendants and its dealers, included the dealer from which Plaintiff purchased the Subject Vehicle and specifically, of Defendants' implied warranties." (FAC, ¶ 19) "Defendant made affirmations of fact and promises, including written warranties, relating to the Subject Vehicle's condition and performance." (FAC, ¶ 24). "These affirmations and promises became part of the basis of the bargain, creating an express warranty that the goods shall conform to the description." (FAC, ¶ 25). "Defendant breached the express warranty by delivering a defective vehicle and failing to repair the defects within a reasonable time." (FAC, ¶ 26).

In his Opposition, Plaintiff does not contest that he failed to allege privity. Rather, Plaintiff argues that his claim is based upon Defendant's own express warranty obligations, which remained in effect at the time Plaintiff purchased the subject vehicle. Plaintiff

		contends that privity is not required, citing to both *Ballesteros, supra,* and *Davis, supra*. However, as mentioned above, these two cases held that the Commercial Code's express warranty provisions are limited to warranties given by the seller directly to the buyer. (*Ballesteros,* supra, 109 Cal.App.5th at 1216 [*citing Davis, supra*, 100 Cal.App.5th at 838]). Rather, the court in *Ballesteros* held that "[t]he Song-Beverly Act explicitly governs manufacturer warranties and does not require privity." (*Ballesteros, supra,* 109 Cal.App.5th at 1218). Plaintiff does not bring a claim under the Song Beverly Act. Accordingly, the demurrer is sustained with leave to amend. **3rd COA – Breach of Implied Warranty of Merchantability (Cal. Com. Code § 2314) and 4th COA - Breach of Implied Warranty of Fitness for a Particular Purpose (Cal. Com. Code § 2315)** Cal. Com. Code § 2314 provides: (1) Unless excluded or modified (Section 2316), a warranty that the goods shall be merchantable is implied in a contract for their sale if the seller is a merchant with respect to goods of that kind. Under this section the serving for value of food or drink to be consumed either on the premises or elsewhere is a sale. (2) Goods to be merchantable must be at least such as (a) Pass without objection in the trade under the contract description; and (b) In the case of fungible goods, are of fair average quality within the description; and (c) Are fit for the ordinary purposes for which such goods are used; and (d) Run, within the variations permitted by the agreement, of even kind, quality and quantity within each unit and among all units involved; and (e) Are adequately contained, packaged, and labeled as the agreement may require; and (f) Conform to the promises or affirmations of fact made on the container or label if any. (3) Unless excluded or modified (Section 2316) other implied warranties may arise from course of dealing or usage of trade. Cal. Com. Code § 2315 provides: "Where the seller at the time of contracting has reason to know any particular purpose for which the goods are required and that the buyer is relying on the seller's skill or judgment to select or furnish suitable goods, there is unless excluded

		or modified under the next section an implied warranty that the goods shall be fit for such purpose." As stated above, the court in *Ballesteros, supra,* held that "implied warranties arise under the Commercial Code only for a merchant or seller in privity with the buyer." (*Ballesteros, supra,* 109 Cal.App.5th at 1217). Plaintiff concedes there is no privity, but the only cases Plaintiff relies on in support of his argument that privity is not required are *Ballesteros* and *Davis,* which support the opposite conclusion. Accordingly, the demurrer is sustained with leave to amend. **1st COA – Violation of Magnuson-Moss Warranty Act (MMWA)** Defendant demurrers to this cause of action on the basis that Plaintiff has not stated a viable state law claim. As the court held in *Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022: "the claims under the Magnuson–Moss Act stand or fall with his express and implied warranty claims under state law." Plaintiff concedes Defendant's argument that MMWA claims "stand or fall" with the state-based claim. (Opp., 3:3). Plaintiff argues that because the Commercial Code claims are viable, so too is the MMWA claim. However, because Plaintiff's other causes of action under the Commercial Code fail, the court sustains the demurrer as to this cause of action with leave to amend as well. Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 30 days of service of notice of ruling. Defendant shall give notice.
3	Church vs. Rancho Madrina Community Association	**TENTATIVE RULING:** **Petition to Confirm Arbitration Award** Petitioner Rancho Madrina Community Association moves to confirm the arbitration award made on October 16, 2023. For the following reasons, the petition is GRANTED.

		A petition to confirm an arbitration award must satisfy the requirements set forth in California Code of Civil Procedure § 1285.4. The petition must set forth or have attached: (a) the substance of or a copy of the agreement to arbitrate (unless the petitioner denies its existence); (b) the names of the arbitrators; and (c) a copy of the award and the written opinion of the arbitrators, if any. "A petition to confirm need only set forth (1) the names of the arbitrators, (2) the arbitration agreement (by description or attached copy), and (3) the award and written opinion of the arbitrators (by description or attached copy)." (*Valencia v. Mendoza* (2024) 103 Cal.App.5th 427, 442.) The petition must be served and filed within four years after the date of service of a signed copy of the award on the petitioner. (Code Civ. Proc. § 1288.) Any party to an arbitration in which an award has been made may petition the court to confirm the award. (Code Civ. Proc. § 1285.) Once a petition meeting the statutory requirements is properly served and filed, Section 1286 mandates that "the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc. § 1286.) This creates a presumption in favor of confirmation. "Once a petition to confirm that meets the statutory requirements has been served, 'the burden is on the party attacking the award to affirmatively establish the existence of error." (*Valencia, supra,* 103 Cal.App.5th at 442.) The trial court has only four permissible courses of action when a petition to confirm is filed: confirm the award, correct and confirm it, vacate it, or dismiss the proceeding. (*Soni v. SimpleLayers, Inc.* (2019) 42 Cal.App.5th 1071; *IHM Productions, Inc. v. Starline Tours of Hollywood, Inc.* (2018) 21 Cal.App.5th 1058.) The grounds for vacating an award are limited to those enumerated in section 1286.2, such as when arbitrators exceeded their powers and the award cannot be corrected without affecting the merits. Similarly, correction is permitted only for specific defects such as evident miscalculation, matters not submitted to arbitration, or imperfections in form not affecting the merits. (Code Civ. Proc. § 1286.6.) Once an award is confirmed, judgment shall be entered in conformity with the award, which has the same force and effect as a judgment in a civil action and may be enforced accordingly. (Code Civ. Proc. § 1287.4.)

Respondent Chad Church opposes the petition and asks the Court to vacate the award because the arbitrator exceeded his authority in multiple ways. However, Respondent's request to vacate the award is untimely.

A party may seek to vacate an award either by filing a petition to vacate or requesting vacatur in response to a petition to confirm the award. (Code Civ. Proc. § 1288.2.) Such petition must be filed and served "not later than 100 days after the date of the service of a signed copy of the award on the petitioner." (Code Civ. Proc. § 1288.) In the event a request to vacate is made in response to the petition to confirm, the response must be timely under the 100-day deadline and it also must be filed within 10 days after service of the petition to confirm. (*Law Finance Group, LLC v. Key* (2023) 14 Cal.5th 932, 946; Code Civ. Proc. § 1288.2; § 1290.6; see also *Eternity Investments, Inc. v. Brown* (2007) 151 Cal.App.4th 739, 746 [holding that when a party does "not serve or file a petition or response to correct or vacate the award before the 100–day period expire[s]," and the opposing side files a petition to confirm more than 100 days after service of the award, it is then "too late … to seek correction or vacatur."].)

"[W]hen a filing both (1) responds to a petition to confirm, and (2) requests that the arbitration award be vacated, both deadlines apply: (1) Absent a written agreement or court order, the response must be filed within 10 days after service of the petition to confirm and (2) in any event, no later than 100 days after service of the award." (*Law Finance Group, supra,* 14 Cal.5th at 946–947.)

Respondent's filing does not meet either deadline.

First, Respondent's request to vacate the arbitration award was not filed and served within 100 days from service of the arbitration award. (Code Civ. Proc. § 1288.) The arbitration award was served on October 17, 2023. (ROA 403 at ¶ 9.) Respondent filed his opposition seeking to vacate the arbitration award on June 10, 2026 – over two and a half years later.

Second, Respondent's request to vacate the arbitration award was not filed within 10 days after service of the petition to confirm the award. The petition to confirm the award was served on March 18, 2026. (ROA 403.) Again, Respondent filed his opposition seeking to vacate the arbitration award on June 10, 2026 – 84 days later. Respondent's request to vacate the arbitration award is untimely.

		The petition to confirm the arbitration award meets the statutory requirements and thus "the court shall confirm the award as made." (Code Civ. Proc. § 1286.) Accordingly, the petition is granted. Petitioner shall give notice of this ruling. Petitioner is also ordered to file and serve a proposed judgment consistent with the confirmed arbitration award.
4	168 ET LLC vs. El Toro Shopping Center II LLC	**TENTATIVE RULING:** Plaintiff 168 ET LLC's Motion for Relief from Dismissal of Defendant Michael H. Mogel [sic], for Leave to Amend Complaint, and to Reinstate Dismissed Defendants PMA Advisors and Michael H. Mogel [sic] is DENIED. **A. Statement of Law – Set Aside Dismissals** "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein[1], otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months[2], after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) Section 473 is the proper vehicle for setting aside a dismissal. (*Gee v. Greyhound Lines, Inc.* (2016) 6 Cal.App.5th 477, 486; *Chase v. Superior Court of Los Angeles County* (1962) 210 Cal.App.2d 872, 875 [a dismissal "may be directly attacked under section 473 of the Code of Civil Procedure by a party to the action on the grounds of mistake, inadvertence, surprise, or excusable neglect or that it is void"]; see *J.A.T. Entertainment, Inc. v. Reed* (1998) 62 Cal.App.4th 1485. 1492-1493 [vacate dismissal without prejudice under both discretionary and mandatory provisions of section 473]; see *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 770 [vacate dismissal with prejudice where dismissal was result of attorney fault].) The court has wide discretion to grant relief under the statute authorizing relief from a proceeding taken against a party through his

[1] Plaintiff seeks to restore Defendants Michael H. Mogel and PMA Advisors as defendants to the action, and they seek leave to file a First Amended Complaint, which would name these two dismissed defendants.
[2] Mugel was dismissed, with prejudice, on April 25, 2023. [ROA # 17] PMA was dismissed, without prejudice, on December 2, 2025. [ROA # 68] The Motion was filed March 23, 2026, meaning the Motion is untimely as to Mugel, but timely as to PMA.

or her mistake, inadvertence, surprise, or excusable neglect. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1111.) " 'A motion seeking such relief lies within the sound discretion of the trial court, and the trial court's decision will not be overturned absent an abuse of discretion…. Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.] In such situations, "very slight evidence will be required to justify a court in setting aside the default." [Citations.] [¶] Moreover, because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. [Citations.] Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits. [Citations.]' " (*McCormick v. Board of Supervisors* (1988) 198 Cal.App.3d 352, 359-360, superseded by statute, on other grounds, as discussed in *Torrey Hills Community Coalition v. City of San Diego* (2010) 186 Cal.App.4th 429, 441-442 [discussing how California Public Resource Code section 21167.4 was amended in 1993 and 1994]; *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1419-1420; accord, *Behm v. Clear View Technologies* (2015) 241 Cal.App.4th 1, 8.)

"[T]he trial court's discretion to deny a motion for relief under section 473 based on the failure to establish excusable neglect is limited to circumstances where 'inexcusable neglect is clear….' " (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1419-1420.) "Stated another way, the policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary. [Citations.]" (*Weitz v. Yankosky* (1966) 63 Cal.2d 849, 854-855; *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696.)

Further, " 'The law strongly favors trial and disposition on the merits. Therefore, any doubts in applying section 473 must be resolved in favor of the party seeking relief. When the moving party promptly seeks relief and there is no prejudice to the opposing party, very slight evidence is required to justify relief.' [Citation.]" (*Avila v. Chua* (1997) 57 Cal.App.4th 860, 868.) For this reason, "we need not consider respondents' arguments that counsel's mistake was inexcusable." (*Ibid.*)

B. Merits -- Set Aside Dismissal

The Court denies the Motion to Set Aside Dismissal because the Motion was not accompanied by a proof of service. This does not comply with the Code of Civil Procedure's and the California Rules of Court's requirements that all moving and supporting papers be filed and served. (Code Civ. Proc., §§ 1005, 1010; Cal. Rules of Court, rule 3.1300; see Code Civ. Proc., § 1005.5 [a motion is made upon the due service and filing of the notice of motion].)

Further, and as noted, Mugel was dismissed on April 25, 2023, yet Plaintiff did not file this Motion until March 23, 2026, far beyond the six-month limitation of section 473, subdivision (b) of the Code of Civil Procedure. Thus, even if Plaintiff properly served its Motion, the Motion as to Mugel was untimely, such that it must be denied.

In its Motion, Plaintiff argues that "pro per litigants are held to reasonable standards, and technical issues are common in remote proceedings." However, *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, which Plaintiff cited in support of the foregoing position, held that "mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation. [Citation.] To the extent it articulates a contrary view, *Pete v. Henderson* (1954) 124 Cal.App.2d 487, 491 [269 P.2d 78, 45 A.L.R.2d 58] should very rarely, if ever, be followed. A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985.)

In other words, any period of self-representation does not afford Plaintiff exceptionally lenient treatment. Instead, it is entitled to the same, but no greater, consideration than represented parties, and it is held to the same procedural requirements as represented parties. (*Rancho Mirage Country Club Homeowners Association v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262.)

C. Statement of Law – Leave to Amend

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may

		likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1); *Doskocz v. ALS Lien Services* (2024) 102 Cal.App.5th 107, 120; *Miyahara v. Wells Fargo Bank, N.A.* (2024) 99 Cal.App.5th 687, 703.) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576.) "A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located[3]." (Cal. Rules of Court, rule 3.1324(a).) In addition, "A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier[4]." (Cal. Rules of Court, rule 3.1324(b).) " 'It is well established that leave to amend a complaint is entrusted to the sound discretion of the trial court, and that the exercise of that discretion will not be disturbed on appeal absent a clear showing of abuse of discretion.' [Citation.] This discretion extends to requests to amend both the causes of action and the parties." (*North Coast Village Condominium Association v. Phillips* (2023) 94 Cal.App.5th 866, 881; see *Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 909 [trial court's exercise of discretion in ruling on motion for leave to amend a complaint " ' "will not be disturbed on appeal absent a clear showing of abuse" ' "].) "While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this

[3] While the Motion generally describes the three new proposed causes of action (Motion, 7:11-8:4), it does not comply with the requirements of rule 3.1324(a).

[4] Plaintiff's counsel did not support the Motion with a declaration.

		discretion must be sound and reasonable and not arbitrary or capricious. [Citation.] And it is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.' [Citations.] If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) "[P]leadings and amendments thereto should be allowed and construed liberally with the object of affording every litigant his day in court and to render substantial justice between the parties. [Citations.]" (*Kauffman v. Bobo & Wood* (1950) 99 Cal.App.2d 322, 323.) "The court should show great liberality at all stages in permitting such amendments as will facilitate the production of all the facts bearing on the questions involved in the action, where this can be done without working great delay and without jeopardizing the rights of an adverse party, and where the cause of action and the issues involved will not be radically changed." (*Barba v. Superior Court of Los Angeles County* (1966) 239 Cal.App.2d 572, 577.) " 'Such amendments have been allowed with great liberality "and no abuse of discretion is shown *unless by permitting the amendment new and substantially different issues are introduced in the case or the rights of the adverse party prejudiced* [citation]." [Citations.]' [Citation.]" (*Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 909; see *Mac v. Minassian* (2022) 76 Cal.App.5th 510, 519 [" ' "California courts 'have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others' " ' "]; see *Duchrow v. Forrest* (2013) 215 Cal.App.4th 1359, 1377-1378 [liberality in permitting amendment at any stage of the proceeding when no prejudice to opposing party shown. Examples of prejudice may include long and unexplained delay or where amendment introduces new and substantially different issues into case]; see *Singh v. Southland Stone, U.S.A., Inc.* (2010) 186 Cal.App.4th 338, 354-355 [trial court can deny motion to amend where there is a lengthy delay in filing the motion and the amendment raises new issues the opposing party did not have an opportunity to defend against]; see *McKee v. Mires* (1952) 110 Cal.App.2d 517, 522-523 [it was not abuse of discretion to allow amendment of complaint even after request to amend was made at the conclusion of the case to conform to proof].)

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<tr><td></td><td></td><td>In determining whether to allow a party to amend its pleading, “ ‘trial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory—for example, an easement as opposed to a fee—no prejudice can result.’ [Citation.] ‘The basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.’ [Citation.]” (Garcia v. Roberts (2009) 173 Cal.App.4th 900, 910.)

D. Merits -- Motion for Leave to Amend

As with its request for relief from the dismissals of Mugel and PMA, the request for leave to amend is denied because the Motion was not accompanied by a proof of service. In addition, the Motion does not comply with the requirements of rule 3.1324 of the Rules of Court.

Next, the proposed First Amended Complaint names Mugel as a defendant. However, and as discussed, the motion to set aside Mugel’s dismissal is now time-barred.

Further, Plaintiff has filed two motions, first, a motion for relief from dismissals, and second, a motion for leave to file a first amended complaint, yet it only paid one filing fee of $60.00. It should be required to pay two filing fees.

For the foregoing reasons, the Court denies the request for leave to amend.

Moving party to give notice.</td></tr>
<tr><td>5</td><td>Activate Clean Energy, LLC vs. DMX Engineering, LLC</td><td>TENTATIVE RULING:

For the reasons set forth below, Plaintiffs Activate Clean Energy, LLC and Rasa Energy, Inc.’s motion to amend judgment is DENIED without prejudice.</td></tr>
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		Under Code of Civil Procedure section 187, a court has inherent power to use "all the means necessary" to carry its jurisdiction into effect. This includes amending a judgment to add a nonparty alter ego as a judgment debtor. (*Rubio v. CIA Wheel Group* (2021) 63 Cal.App.5th 82, 102-103; *Musik v. D'Arco* (2011) 197 Cal.App.4th 1065, 1074-1075.) The amendment does not add a new defendant; it merely sets forth the true name of the real defendant. (*Rubio v. CIA Wheel Group, supra,* 63 Cal.App.5th at 101; *Musik v. D'Arco, supra,* 197 Cal.App.4th at 1072.) "The decision to grant an amendment lies in the sound discretion of the trial court. [Citation.] Great liberality is allowed in granting such amendments." (*Relentless Air Racing, LLC v. Airborne Turbine Ltd. Partnership* (2013) 222 Cal.App.4th 811, 815.) To prevail in a motion to add judgment debtors, the moving party must show that "(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone." (*Relentless*, *supra*, 222 Cal.App.4th at pp. 815–816.) "Factors for the court to consider include identical equitable ownership, comingling of funds, use of the same offices, disregard of formalities, and use of one entity as a mere shell for the affairs of another." (*Butler America, LLC v. Aviation Assurance Co., LLC* (2020) 55 Cal.App.5th 136, 146.) "An important factor in determining alter ego liability is that a corporate entity is so undercapitalized that it is likely to have no sufficient assets to meet its debts." (*Ibid*.) "When considering the application of the alter ego doctrine to a particular situation, it must be remembered that it is an equitable doctrine and, though courts have justified its application through consideration of many factors, their basic motivation is to assure a just and equitable result." (*Alexander v. Abbey of the Chimes* (1980) 104 Cal.App.3d 39, 48.) Here, Plaintiffs seek to amend the default judgment entered against Defendant DMX Engineering LLC ("DMX") on March 11, 2025, to add Defendant Igor Gorovenko, in his individual capacity and as the alter ego of DMX. However, Plaintiffs have not established that Defendant Gorovenko controlled the litigation that resulted in *Defendant DMX's default* judgment. A defendant cannot be bound by a default judgment against codefendants, taken in the co-defendant's

		absence and without an opportunity to present the co-defendant's case. (*Taliaferro v. Hays* (1961) 188 Cal.App.2d 235, 236). That DMX did not file an answer or respond to Plaintiffs' complaint cannot be imputed on Gorovenko. Indeed, this action is still currently pending against Defendant Gorovenko, who has filed an answer, actively participated in his own defense and has even asserted his own affirmative claims. No trier of fact has adjudicated Plaintiffs' claims against Gorovenko or Gorovenko's claims against Plaintiffs. Plaintiffs cannot circumvent litigation against Gorovenko by attempting to take advantage of the default judgment against DMX, with which Gorovenko was not personally involved. To the extent that Plaintiffs wish to establish that Gorovenko is the alter ego of DMX, Plaintiffs may do so in this litigation, present the evidence to the trier of fact, and allow a trier of fact to determine that question of fact. The court finds that the summary procedures of amending a judgment, which relies on hearsay, no cross-examination, and without the benefit of allowing a trier of fact to carefully weigh and consider all of the evidence, particularly given that active litigation is still pending against Gorovenko, to be improper at this time. The court declines to rule on Plaintiffs' evidentiary objections as unnecessary for the court's determination on this motion. The motion is, therefore, DENIED. Plaintiffs to give notice.
6	Diyar Irvine, LLC vs. Elzoheiry	**TENTATIVE RULING:** **<u>Motions for Leave to Amend Answers</u>** Defendant Loan Funders, LLC, Defendant Athene Annuity and Life Company, and Defendant Andrew Abas move for leave to file a First Amended Answer to the First Amended Complaint filed by Plaintiffs Diyar Irvine, LLC, Green City Development, LLC, Sadek Elsewedy, and Ahmed Elsewedy. For the following reasons, the unopposed motions are GRANTED. The Court may, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading. (Code Civ. Proc. § 473(a)(1).) California Rules of Court, rule 3.1324 governs a motion for leave to amend.

		California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. (*IMO Development Corp. v. Dow Corning* (1982) 135 Cal.App.3d 451, 461.) Thus, leave to amend to more clearly state a plaintiff's theories of liability should be liberally allowed. (*Rainer v. Buena Community Memorial Hospital* (1971) 18 Cal.App.3d 240, 253-254.) This liberality only applies so long as there is no prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.) Defendants seek leave to amend their Answers to the First Amended Complaint to delete the affirmative defenses of consent and justification and good faith, to add several new affirmative defenses, to add specific sections of the Code of Civil Procedure to their statute of limitations affirmative defense, and to add new factual allegations identified in discovery. If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (*Higgins v. Del Faro* (1981) 123 CA3d 558, 564-565) Plaintiffs did not oppose the motion. As Defendants have complied with CRC 3.1324 and have met the requirements for seeking leave to amend, the motions are granted. Defendants are ORDERED to file their Amended Answers within 5 days of this ruling. Moving parties shall give notice of this ruling.
7	Hamidi vs. Mar Ranch, LLC	**TENTATIVE RULING:** **<u>Motion to Be Relieved As Counsel of Record</u>** The Law Office of Paul Mankin, APC moves to be relieved as counsel of record for Plaintiff Nataliia Zadorkina Hamidi. The motion is GRANTED. The order relieving counsel will be effective upon the filing of a proof of service of the executed order upon all parties. Moving counsel shall give notice of this ruling.

8	Hernandez vs. Ford Motor Company	**TENTATIVE RULING:** For the reasons set forth below, Plaintiff Elias Varela Hernandezs motion for attorneys' fees is GRANTED, subject to the deductions below. The court awards Plaintiff attorneys' fees in the total amount of $27,375.00. **Basis for Attorneys' Fees** A party seeking an award of fees has the burden of establishing entitlement to an award, documenting the appropriate hours spent, the hourly rates, and that the fees sought were reasonable and necessary to the conduct of the litigation. (*569 E. County Blvd. LLC v Backcountry Against the Dump, Inc*. (2016) 6 Cal.App.5th 426, 432). Civ. Code § 1794, subd. (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Defendant does not dispute that the parties settled this matter and agreed to reasonable attorneys' fees pursuant to Civ. Code § 1794, subd. (d). Rather, Defendant disputes that Plaintiff has met its burden of proving that the fees were incurred, and disputes the amount incurred for the reasons set forth below. **Reasonable Hourly Rate** The lodestar method for calculating attorneys' fees applies to any statutory attorneys' fees award, unless the statute authorizing the award provides for another method of calculation. (*Galbiso v. Orosi Pub. Util. Dist*. (2008) 167 Cal.App.4th 1063, 1089; see also *K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1425.) When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998).

		The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.). The hourly rates for the attorneys who worked on this case are as follows: (1) Kevin Jacobson (2024 rate of $525/hr. and 2025 rate of $550/hr.); (2) Matthew Treybig (2024 rate of $425/hr. and 2025 rate of $500/hr.); (3) Hadi Gerami (2025 rate of $550/hr.) (4) Michael Jahangani (2025 rate of $350/hr.); (5) Kayla Corrick (2025 rate of $350/hr.); (6) Ellen Zakharian (2025 rate of $400/hr.); and (7) Stephanie Hovhannisyan (2026 rate of $395/hr.) (See Jacobson Decl. ¶¶ 5-44. Ex. 1-25.) Plaintiff set forth the background of each attorney justifying these rates. Mr. Jacobson worked as an attorney from 2013 and co-founded Quill & Arrow, LLP in 2019. (Decl. of Jacobson, ¶ 4). His requested rate or similar rates has been approved in other cases. (See Decl. of Jacobson, ¶¶ 12-21). The court finds these rates reasonable. **<u>Lodestar multiplier</u>** In determining whether to apply a multiplier, the court considers a variety of factors such as the novelty and difficulty of the issues presented, the skill displayed in presenting them, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.) The court is not required to impose a multiplier; the decision is discretionary. (*Galbiso*, 167 Cal.App.4th at 1089.) Plaintiff requests a multiplier enhancement of 1.25, contending that Plaintiff's counsel obtained an "excellent outcome", and endured "substantial risks posed by this litigation". However, this appears to be a routine lemon law case, and the case settled within a year of the complaint being filed. The court declines to award a multiplier. **<u>Hours Reasonably Expended</u>** "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California*

State University (2005)132 Cal.App.4th 359, 396; *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are also "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements."].)

In this matter, Mr. Jacobson attached the billable entries to his declaration. (See Decl. of Jacobson, Ex. 27).

The Court will reduce the hours it determines were excessive or not supported. (*Levy v. Toyota Motor Sales, U.S.A., Inc*. (1992) 4 Cal.App.4th 807, 816 [party seeking attorney fees has the "burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount" (internal quotation marks omitted)]; *Christian Research Institute v. Ahor* (2008) 165 Cal.App.4th 1315, 1326-29 [affirming award for 71 hours of attorney time in case where attorneys sought fees for over 600 hours].) Fee award amounts are matters within the trial court's discretion: the "trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*Ketchum, supra,* 24 Cal.4th at 1132.)

In challenging attorney fees as excessive, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc*. (2008) 163 Cal.App.4th 550, 564.)

Defendant challenged the various time entries by Plaintiffs' counsel on the following basis:

1. **Block Billing**

Defendant selected six specific entries that Defendant contends are block billing entries, which obscures how much time was spent on each task and makes it difficult to assess reasonableness of fees. (See Decl. of Cabibi, Ex. A). However, with the exception of one entry, the court finds that these entries are permissibly worded, and the "block" billing of tasks were actually various steps related to a single task. (For example, the 11/1/24 entry by Mr. Jacobson which reads: "Review and analyze Defendant Ford Motor Co.'s Response to Meet and Confer letter and SPO"). The only block billing entry selected by Defendant which relates to multiple different tasks is the 4/10/24 entry by Mr.

		Jacobson which reads: "Review consultation notes with Plaintiff regarding merits of the potential legal case, strengths and weaknesses. Review client repair orders, sales contracts, communications with manufacturer, and repair summary for initial case review." However, the total amount billed for this task is .2, which is reasonable. Thus, the court finds that these entries are descriptive and reasonable. **2. <u>Vague Billing Entries</u>** Defendant selected three specific entries that Defendant argues are vague and broadly worded, giving no further insight. The court finds the following to be vague, particularly here where counsel is seeking more than .1 for each entry: "5/15/2025 HG Communication with Client 0.3 $550.00 $165.00" "5/29/2025 KJ Communication with Client 0.30 $550.00 $165.00" The court reduces each entry by .1 each. **3. <u>Duplicative Entries</u>** Next, Defendant selects 12 entries that it contends are duplicative of work performed. The following entries on 10/28/24 by timekeeper "MT" appear to be duplicative of the same entries on 7/30/24 by timekeeper "MT": 10/28/2024 MT Review and analyze Defendant's Responses and Objections to Plaintiff's Request for Production, Set One. 0.60 $425.00 $255.00 10/28/2024 MT Review and analyze Defendant's Responses and objections to Plaintiff's Requests for Admissions. 0.40 $425.00 $170.00 10/28/2024 MT Review and analyze Defendant's answers and objections to Plaintiff's Special Interrogatories, set one 0.80 $425.00 $340.00 10/28/2024 MT Review and analyze Defendant's Answers and objections to Plaintiff's Form Interrogatories 0.40 $425.00 $170.00 Accordingly, the court deducts $935 from these entries.

		4. <u>Excessive Time Spent</u> Next, Defendant selects 30 entries that Defendant contends was excessive in the amount of time spent. The following two entries appear to be excessive/unreasonable: 5/30/2025 HG Prepare for and draft hearing summary for vacated pre-trial conference 0.60 $550.00 $330.00 (the court will reduce to .1) 2/6/2026 SH Draft declaration is support of motion for attorneys' fees 3.70 $395.00 $1,461.50 (the court will reduce to 2.5) The court finds the other entries to be reasonable. The court deducts a total of $749. **5. <u>Anticipated Billing for Opposition and Reply</u>** Finally, Defendant contends that the requested amount of $4,000 for additional anticipated attorney fees in connection with reviewing Defendant's Opposition to Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses; preparing Plaintiff's Reply brief; and attending the hearing on this Motion is excessive. The court agrees, and awards $2,500 for this work only. Plaintiff shall give notice.
9	Hoang vs. CIT Bank, N.A.	**TENTATIVE RULING:** For the reasons set forth below, the motion by Plaintiff Nam Neil Hoang for reconsideration of the court's prior order is DENIED with prejudice. "When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Cal. Civ. Proc. Code § 1008 (a).)

		A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Id*.) California Code of Civil Procedure section 1008 "is the exclusive means for modifying, amending, or revoking an order. That limitation is expressly jurisdictional." (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494,1499.) Under the standards set forth above, Plaintiff fails to comply with CCP section 1008. Plaintiff fails to specifically identify the "prior order" for which Plaintiff seeks reconsideration. The only order remotely within 10 days of Plaintiff's pending motion for reconsideration and, therefore, the only order for which jurisdiction exists, was a January 21, 2026, order denying Plaintiff's motion for reconsideration ***with prejudice***. Plaintiff fails to offer any new facts, law, or circumstances since the January 21, 2026, order that would warrant reconsideration. All of the arguments that Plaintiff makes in Plaintiff's pending motion for reconsideration were available at the time of the court's January 21, 2026, ruling. Indeed, the pending motion for reconsideration is nearly identical to Plaintiff's prior motion for reconsideration. The motion is, therefore, denied with prejudice. Plaintiff is admonished that the court is inclined to impose monetary sanctions against Plaintiff for any future meritless motions for reconsideration of the same/similar orders under Code of Civil Procedure section 128.5. Plaintiff to give notice.
10	LVNV Funding LLC vs. Bracic	**TENTATIVE RULING:** For the reasons set forth below, Defendant Demir Bracic's unopposed motion to set aside default and default judgment is GRANTED. The motion was previously continued due to service issues and procedural defects in Defendant's declaration. The service issues have since been corrected. (See ROA ## 55, 56, 59). Further, Defendant's declaration now complies with Code of Civil Procedure

		section 2015.5. (See ROA # 59 at p. 3). As such, the court now proceeds with the motion on the merits. Defendant Bracic testifies that Defendant did not receive actual notice of the action such that relief should be granted under section 473.5. When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. (*Cal. Civ. Proc. Code* § 473.5(a)). Such a motion "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action." (Id., § 473.5, subd. (b).) Here, the proof of service states that Bracic was personally served on February 16, 2026. Bracic offers a contradicting declaration stating that the physical description on the proof of service does not match Bracic's physical descriptors—i.e., Bracic is not bald, is not 5'4-5'6 and does not weigh between 120-140 pounds. Further, Bracic states that, having viewed his video doorbell system, on February 16, 2025, a male approached Defendant's wife, but did not hand off or deliver any papers to her that day. Bracic contends that he did not discover or have notice of this action until July 15, 2025. Given this contradicting declaration, and taking into account the liberal policy of considering claims on the merits, the court finds that a sufficient basis exists to set aside the default against Defendant Bracic under section 473.5. The court notes that Default judgment was entered on May 15, 2025, and Defendant's motion was filed on August 12, 2025, within the 6 month time period prescribed by section 473.5. For these reasons, the motion is granted. Defendant to give notice.

11	Ryan vs. Village Property Management	**TENTATIVE RULING:** For the reasons set forth below, Defendants Karen Eastwood, Wallace, Richardson, Sontag & Le, LLP, and Jaqlynn Tarbell Bringham's (hereinafter referred to as the "Law Firm Defendants") Special Motion to Strike First Amended Complaint is GRANTED. The Law Firm Defendants' Demurrer to Plaintiff's First Amended Complaint, and their Motion to Strike Plaintiff's First Amended Complaint are DENIED as moot. (See *Howard Jarvis Taxpayers Assn. v. Powell* (2024) 105 Cal.App.5th 955, 972 [even if the trial court erred in sustaining defendants' demurrer, the causes of action would have been dismissed pursuant to the defendants' anti-SLAPP motion, such that the appeal of the order sustaining the demurrer would be moot].) **<u>Standard for Anti-SLAPP Motion</u>** Under the anti-SLAPP statute, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1); *Olson v. Doe* (2022) 12 Cal.5th 669, 678) "The moving party 'must establish that the challenged claim arises from activity protected by section 425.16'; if the moving party does so, 'the burden shifts' to the nonmoving party 'to demonstrate the merit of the claim by establishing a probability of success.' [Citation.]" (*Olson v. Doe* (2022) 12 Cal.5th 669, 678; *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884.) "To succeed in opposing a special motion to strike, the nonmoving party must 'demonstrate both that the claim is legally sufficient and that there is sufficient evidence to establish a prima facie case with respect to the claim.' [Citation.] '[C]laims with the requisite minimal merit may proceed.' [Citation.] The moving party prevails by 'defeat[ing]' the 'claim as a matter of law' [citation] in 'a summary-judgment-like procedure' [citation]." (*Olson v. Doe* (2022) 12 Cal.5th 669, 679; *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884.) "If the plaintiff fails to meet that burden, the court will strike the claim." (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884.)

Protected Activity

A "cause of action arising from acts committed by attorneys in representing clients in litigation may appropriately be the subject of an anti-SLAPP motion." (*Wittenberg v. Bornstein* (2020) 50 Cal.App.5th 303, 312, citing to *PrediWave Corp. v. Simpson Thacher & Bartlett LLP* (2009) 179 Cal.App.4th 1204, 1221 [acts committed by attorneys in representing clients in litigation may appropriately be the subject of an anti-SLAPP motion].)

This includes communications made in preparation for, or in anticipation of, bringing an action or other official proceeding. (*Bailey v. Brewer* (2011) 197 Cal.App.4th 781, 789–790; see *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 472 [prelitigation letters constitute conduct in preparation or anticipation of litigation, and they fall within the protection of section 45.16, subdivision (e)(2)]; see *Copenbarger v. Morris Cerullo World Evangelism* (2013) 215 Cal.App.4th 1237, 1245 [service of a three-day notice to quit, as well as the filing of an unlawful detainer action, is protected activity].)

" '[P]relitigation communications may qualify for this protection so long as they " 'concern[ ] the subject of the dispute' and [are] made 'in anticipation of litigation "contemplated in good faith and under serious consideration." ' " ' [Citations.]" (*Medallion Film LLC v. Loeb & Loeb LLP* (2024) 100 Cal.App.5th 1272, 1284–1285; *Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 832-833.)

" 'The "good faith [and under] serious consideration" requirement is not a test for malice. [Citation.] Instead, it focuses on whether the litigation was genuinely contemplated' [citation], and it protects prelitigation communications made in genuine contemplation of litigation while excluding from protection communications made when litigation is 'just a negotiating tactic or a hypothetical possibility. [Citations.] [¶] The requirement to show that litigation is seriously contemplated ensures that prelitigation communications are actually connected to litigation and that their protection therefore furthers the anti-SLAPP statute's purpose of early dismissal of meritless lawsuits that arise from protected petitioning activity. [Citations.]' [Citation.]" (*Medallion Film LLC v. Loeb & Loeb LLP* (2024) 100 Cal.App.5th 1272, 1285–1286; see *People ex rel. Allstate Ins. Co. v. Rubin* (2021) 66 Cal.App.5th 493, 499 [prelitigation communications may constitute protected activity if they were related to litigation that is contemplated in good faith and under serious consideration, but litigation is not under serious consideration if it is only a possibility].)

For example, settlement negotiations and communications, whether preceding the filing of a lawsuit or after the lawsuit has been filed, are protected activity for anti-SLAPP purposes. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1024-1025; see *Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 833 [defendant's letter responding to a prelitigation demand from plaintiff is protected petitioning activity].)

The Law Firm Defendants present evidence that their communications with Plaintiff were made exclusively in their capacity as legal counsel for Huntington Pointe 2019, LP, and its property management company, VPM Management, Inc., sued in this action as Village Property Management. (Bringham Declaration, ¶¶ 4-6, 8; see Eastwood Declaration, ¶¶ 3-5, 7 [legal assistant's communications with Plaintiff were made in connection with ongoing legal representation, and they were made under the direction and supervision of licensed attorneys]; see also Exhibits A & B to First Amended Complaint.)

Moreover, these communications were made on behalf of the Law Firm Defendants' clients, and the communications concerned an ongoing landlord-tenant dispute between Plaintiff and the Law Firm Defendants' clients. (Bringham Declaration, ¶ 6.)

In fact, the communications, particularly the Settlement Agreement attached to Exhibit B of the First Amended Complaint, show they were made in direct response to a small claims action Plaintiff brought against VPM Management, Inc., as well as Plaintiff's complaint with the California Civil Rights Department.

Given the foregoing, the Court finds the Law Firm Defendants have met their burden of showing that Plaintiff's claims against them arise from protected activity, as Plaintiff's claims arise from acts committed by attorneys in representing clients in litigation. (*Wittenberg v. Bornstein* (2020) 50 Cal.App.5th 303, 312.)

Probability of Prevailing on the Merits

Once the moving party establishes the challenged claim arises from protected activity, "the burden shifts to plaintiffs in the second step to demonstrate a prima facie case that would enable them to prevail on the challenged claims. [Citation.] Plaintiffs only need to show 'minimal merit' to defeat the special motion to strike. [Citation.] At this stage, '[t]he court does not weigh evidence or resolve conflicting factual claims ... [but rather] accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law.' [Citation.]" (*Dziubla v. Piazza* (2020) 59 Cal.App.5th 140, 148; see *Olson v. Doe* (2022) 12 Cal.5th 669, 679 ["To succeed in opposing a special motion to strike, the nonmoving party must 'demonstrate both that the claim is legally sufficient and that there is sufficient evidence to establish a prima facie case with respect to the claim' "].)

However, "[i]f the opposing party fails to make the requisite showing, the motion must be granted. [Citation.]" (*Slaney v. Ranger Ins. Co.* (2004) 115 Cal.App.4th 306, 318.)

By failing to oppose the anti-SLAPP, Plaintiff failed to make the requisite showing that there is a probability of prevailing on the merits, i.e., that her claims are legally sufficient, and that there is sufficient evidence to establish a prima facie case with respect to her claims against the Law Firm Defendants. (See *Wright v. Fireman's Fund Ins. Companies* (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a … motion"].)

In any case, a "plaintiff cannot show a probability of prevailing on the merits of a cause of action for anti-SLAPP purposes where the cause of action is barred by the litigation privilege codified in Civil Code section 47. [Citations.]" (*Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 840.) A prelitigation communication that relates to litigation that is contemplated in good faith and under serious consideration is privileged. (*Ibid*.; see *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1272 [litigation privilege applies to communications may extend to steps taken prior to, or after, legal proceedings or trial].)

More importantly, " '[t]he privilege is absolute and applies regardless of malice.' [Citation.]" (*Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 840.)

As noted, the Law Firm Defendants' communications relate directly to a small claims case Plaintiff filed against the Law Firm Defendants' client, as well as a complaint Plaintiff filed with the California Civil Rights Department. The communications also directly relate to the allegations Plaintiff makes in the present lawsuit. Thus, Plaintiffs claims against the Law Firm Defendants are barred by the litigation privilege.

		Since Plaintiff failed to meet her burden, the Court shall grant the Law Firm Defendants' anti-SLAPP motion. Moving parties are ordered to give notice.
12	Cadence Bank N.A. vs. Richardson	**OFF CALENDAR**
13	Carrillo vs. Bryant	**TENTATIVE RULING:** **<u>Motion for Summary Judgment or Summary Adjudication</u>** Defendant Curtis Bryant moves for summary judgment on the Second Amended Complaint (SAC) of Plaintiff Lauretta Joyce Carrillo. For the following reasons, the motion is DENIED. Defendant moves in the alternative for summary adjudication on each cause of action. For the following reasons, the alternative motion is DENIED as to the fifth cause of action and GRANTED as to the first, second, third, fourth, and sixth causes of action. **<u>Statement of Law</u>** Under Code of Civil Procedure section 437c(c), a summary judgment or summary adjudication motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A defendant meets its initial burden by showing that the plaintiff cannot prove its causes of action, or by establishing a complete defense to the plaintiff's causes of action. (Code Civ. Proc., 437c(p)(2).) If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.) A motion for summary adjudication may be granted only "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c(f)(1).)

First Cause of Action (Premises Liability)

The motion for summary adjudication of the first cause of action is GRANTED.

The SAC alleges Defendant breached his duty to properly remove and/or abate the unreasonably dangerous conditions on the premises. (SAC ¶ 20.) Plaintiff alleges those unsafe and dangerous conditions on the premises include, but are not limited to: trees that needed to be cut down; undergrowth with loose branches spread across the property; and old appliances, old dishes, old utensils, old tables, old furniture, an old mattress, miscellaneous trash, five-gallon buckets of old food, an old garbage disposal, and antique tractors—all spread across the property and usually obscured and/or hidden from view in weeds that were at least 1.5 feet high. (SAC ¶ 15.) As a result, Plaintiff suffered severe and permanent injuries to her person. (SAC ¶ 30.)

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. Premises liability '"is grounded in the possession of the premises and the attendant right to control and manage the premises"'; accordingly, '"mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act."' But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. In determining whether a premises owner owes a duty to persons on its property, we apply the *Rowland* factors. Indeed, *Rowland* [*v. Christian* (1968) 69 Cal.2d 108] itself involved premises liability.'" (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1159, internal citations omitted.) Some of the factors to consider in determining whether a premises owner owes a duty include: the likelihood of injury to plaintiff, the probable seriousness of such injury, the burden of reducing or avoiding the risk, the location of the land, and the possessor's degree of control over the risk-creating condition are among the factors to be considered by the trier of fact in evaluating the reasonableness of a defendant's conduct." (*Sprecher v. Adamson Cos.* (1981) 30 Cal.3d 358, 372.)

Defendant Bryan argues he owed Plaintiff no duty to protect or warn against the alleged dangerous condition because the danger was open and obvious.

		“A harm is typically not foreseeable if the ‘dangerous condition is open and obvious.’ [Citation.] ‘“Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” [Citation.] In that situation, owners and possessors of land are entitled to assume others will “perceive the obvious” and take action to avoid the dangerous condition.’” (*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 145-146; *Krongos v. Pacific Gas & Electric Co*. (1992) 7 Cal.App.4th 387, 393 [holding that “if a danger is so apparent that the invitee can reasonably be expected to notice it and protect against it, the condition itself constitutes adequate warning”].) In other words, “foreseeability of harm is typically absent when a dangerous condition is open and obvious.” (*Jacobs v. Coldwell Banker Residential Brokerage Co*. (2017) 14 Cal.App.5th 438, 447.) “[O]wners and possessors of land are entitled to assume others will ‘perceive the obvious’ and take action to avoid the dangerous condition.” (*Ibid*.) For example, “the presence of railroad tracks is a warning of an open and obvious danger[, as] ‘[a] railroad track upon which trains are constantly run is itself a warning to any person who has reached years of discretion, and who is possessed of ordinary intelligence, that it is not safe to walk upon it, or near enough to it to be struck by a passing train. . . .’ [Citations.]” (*Christoff v. Union Pacific Railroad Co.* (2005) 134 Cal.App.4th 118, 126 [affirming order granting summary judgment in favor of railroad company where the plaintiff was injured by a passing train, while attempting to walk along a railroad bridge over a creek].) Similarly, rainwater flowing down a driveway is an open and obvious danger, as “‘[i]t is a matter of common knowledge among children and adults that wet concrete is slippery and that, when on a slanting incline’ such as a driveway, ‘it does not provide a safe footing.’ [Citation.]” (*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 146 [finding no duty to warn].) “[T]he ‘obvious danger’ exception to a landowner’s ordinary duty of care is in reality a recharacterization of the former assumption of the risk doctrine, i.e., where the condition is so apparent that the plaintiff must have realized the danger involved, he assumes the risk of injury even if the defendant was negligent. [Citation.] . . . [T]his type of assumption of the risk has now been merged into comparative negligence.” (*Summer J. v. United States Baseball Federation* (2020) 45 Cal.App.5th 261, 275, *as modified on denial of reh'g (Mar. 9, 2020)*.)

		"The modern . . . law . . . is that 'although the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious, . . . there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability . . .'" (*Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179.) Here, the SAC alleges Defendant hired Plaintiff to clear the premises—specifically, to "clear junk that consisted of undergrowth with loose branches," along with other debris, trash, and old appliances. (*See* SAC ¶ 7.) Plaintiff submits evidence that she sustained her injury when she stepped on a loose branch on the ground, which she did not see. (Pltf.'s Ex. 4 at Nos. 39, 45.) Defendant has no duty to warn against or remove loose branches in undergrowth, where Plaintiff was retained specifically to clear such "undergrowth with loose branches," and the undisputed facts show Plaintiff looked around Defendant's property and took multiple photographs of the property before agreeing to taken on the work. (Def.'s Sep. St. No. 4; Pltf.'s Sep. St. Nos. 4-5.) In other words, Plaintiff cannot establish Defendant owed her a duty to protect against the very conditions Defendant had hired her to remediate. **<u>Second Cause of Action (Failure to Pay Minimum Wages)</u>** The motion for summary adjudication of the second cause of action is GRANTED. The second cause of action alleges Defendant Bryant failed to pay Plaintiff a minimum wage for the work she performed between May and October 2023. (SAC ¶¶ 32-33.) Pursuant to Labor Code 1194(a), "any employee receiving less than the legal minimum wage or the legal overtime compensation applicable to the employee is entitled to recover in a civil action the unpaid balance of the full amount of this minimum wage or overtime compensation, including interest thereon, reasonable attorney's fees, and costs of suit." All workers are employees rather than independent contractors unless pursuant to the so-called "ABC Test," the hiring defendant can establish that: (A) that the worker is free from control of the hiring entity, both under the contract for the performance of the work and in fact; (B) that the worker performs work outside the usual course of

		the hiring defendant's business; and (C) that the worker is customarily engaged in an independently established trade, occupation, or business of the same nature as the work performed. (*Dynamex Operations W. v. Superior Court* (2018) 4 Cal.5th 903, 957.) Here, the undisputed facts show Plaintiff was an independent contractor, not an employee of Defendant. First, the undisputed facts show Defendant did not exercise control over how or with what tools Plaintiff performed the work and did not supervise her or observe her working. (*See* Def.'s Sep. St. No. 13.) Plaintiff worked independently, sometimes performing tree trimming without Defendant's knowledge. (*Ibid.*) Plaintiff attempts to dispute the fact, contending Defendant "mandated that she work from 9:00 a.m. to 6:00 p.m., Monday through Friday, and [Defendant] provided [her] the tools to do the job." (Pltf.'s Sep. St. No. 13, citing Carrillo Decl. ¶ 4.) Plaintiff's cited evidence is insufficient to support those purported facts. To the extent Plaintiff declares that Defendant mandated that she work 9:00 a.m. to 6:00 p.m., Monday through Friday (Carrillo Decl. ¶ 4), the court finds Plaintiff's declaration to contradict her previous deposition testimony. When asked if there was any discussion as to timing for work, Plaintiff testified that Defendant had instructed her not to work outside of those hours, in consideration of the renters residing at the property. (*See* (Pltf.'s Evid. [ROA # 140] at Ex. 1 [Pltf.'s Depo.] at 22:5-12.) In addition, Plaintiff's discovery responses admit she brought her own equipment, including a "mower, weed whacker, trimmers, and a rake" (Supp. Purcell Decl. [ROA # 145], Exs. 13-14 at No. 28); and the tools provided by Defendant did not work and were "a gift" (Pltf.'s Evid. [ROA # 140] at Ex. 1 [Pltf.'s Depo.] at 73:2-4). "It is well-established that 'a party cannot create an issue of fact by a declaration which contradicts his prior discovery responses.'" (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1087, citing *Shin v. Ahn* (2007) 42 Cal.4th 482, 500, fn. 12 and *Preach v. Monter Rainbow* (1993) 12 Cal.App.4th 1441, 1451 ["A party cannot create an issue of fact by a declaration which contradicts his prior pleadings"].) In determining whether any triable issue of material fact exists, the trial court may give "great weight" to admissions made in discovery, as such admissions "have a very high credibility value," particularly when they are "obtained not in the normal course of human activities and affairs but in the context of an established pretrial procedure whose purpose is to elicit facts." (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 22.) "Accordingly, when such an admission becomes relevant to the determination, on

		motion for summary judgment, of whether or not there exist triable issues of *fact* (as opposed to legal issues) between the parties, it is entitled to and should receive a kind of deference not normally accorded evidentiary allegations in affidavits." (*Id.*) Thus, "[w]here a declaration submitted in opposition to a motion for summary judgment motion clearly contradicts the declarant's earlier deposition testimony or discovery responses, the trial court may fairly disregard the declaration and 'conclude there is no *substantial* evidence of the existence of a triable issue of fact.'" (*Whitmire, supra,* 184 Cal.App.4th at 1087, citing *D'Amico*, *supra*, at 21. *Cf. Mason v. Marriage & Family Center* (1991) 228 Cal.App.3d 537, 546 [finding substantial evidence of the existence of triable issues of fact, given plaintiff's detailed explanation of the mistake in her previous interrogatory response regarding the date on which plaintiff's injuries began]; *Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1502-03 [considering a supplemental declaration that plaintiff had not understood the question asked of her at the deposition, and providing a reasonable explanation for the source of her confusion].) Second, the undisputed facts show the work performed by Plaintiff was outside the usual course of Defendant's business, as Defendant had none. It is undisputed Defendant Bryant is a retired law enforcement officer who did not own or operate any business related to trimming trees, weeds, brush, or clearing and removing trash and miscellaneous items from various locations. (*See* Def.'s Sep. St. Nos. 11-12; Pltf.'s Sep. St. Nos. 11-12.) Lastly, the undisputed facts show Plaintiff was engaged in the business of clearing brush. Plaintiff admits she had performed "some brush clearing work" in the Garner Valley and Anza neighborhoods prior to working for Defendant. (Def.'s Sep. St. No. 14 [citing Pltf.'s Depo. at 66:22-25]; Pltf.'s Sep. St. No. 14.) **<u>Third Cause of Action (Breach of Oral Contract)</u>** The motion for summary adjudication of the third cause of action is GRANTED. The third cause of action alleges the parties entered into an oral contract whereby Plaintiff agreed to clear Defendant's yard and cut down, and trim the trees, and Defendant would pay her when the work was complete. (SAC ¶ 41.) The elements of a cause of action for breach of contract are: (i) existence of the contract; (ii) Plaintiff's performance or excuse for nonperformance; (iii) Defendant's breach; and (iv) damage to

		plaintiff resulting therefrom. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811.) A contract exists only if the parties have a "'meeting of the minds on all material points.'" (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 215, quoting *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 359; *Fair v. Bakhtiari* (2006) 40 Cal.4th 189, 203.) It is not enough that the parties agree on "some of the terms." (*Ibid*.) Nor is it sufficient if the "essential terms [are] only sketched out, with their final form to be agreed upon in the future." (*Id.* at p. 213.) A contract exists only if the agreed-upon terms "provide a basis for determining the existence of a breach and for giving an appropriate remedy." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811; *Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 734 [same].) Here, the undisputed facts show no contract between the parties. Plaintiff admits the parties did not set a price before she began to work for Defendant. (Carrillo Decl. ¶ 3.) Plaintiff submits no evidence that there was any meeting of the minds as to the material point of payment amount. (*See* Carrillo Decl.) **<u>Fifth Cause of Action (Quantum Meruit)</u>** The motion for summary adjudication is DENIED as to the fifth cause of action. The SAC alleges Plaintiff performed services for Defendant Bryant, and the fair and reasonable value of those services is at least $10,500. (SAC ¶¶ 57, 58.) The elements of a common count for goods and services rendered are: (i) that Defendant requested, by words or conduct, that Plaintiff deliver goods or perform services for the benefit of Defendant; (ii) that Plaintiff delivered the goods or performed the services as requested; (iii) that Defendant has not paid Plaintiff for the goods or services; and (iv) the reasonable value of the services and goods that were provided. (CACI 371; *see also E.J. Franks Const., Inc. v. Sahota* (2014) 226 Cal.App.4th 1123, 1127; *Ochs v. PacifiCare of California* (2004) 115 Cal.App.4th 782, 794 [plaintiff entitled to recover the reasonable value of services].) Defendant Bryant does not meet his initial burden to show that Plaintiff cannot establish a claim for quantum meruit. Defendant submits evidence that he paid Plaintiff $900 for Plaintiff's services but was unable to pay the remaining $300 balance. (Def.'s Sep. St.

		Nos. 45-47.) By Defendant's own admission, he did not pay the alleged fair and reasonable amount for the services rendered by Plaintiff. To the extent Defendant argues that $900 is a fair and reasonable amount for the services Plaintiff rendered, there is insufficient evidence to support this contention. Defendant submits evidence that Plaintiff was hired at a flat rate of "approximately $400 per job" (*see* Def.'s Sep. St. No. 44) but does not show how many jobs Plaintiff was hired to complete, or how many jobs Plaintiff completed (*see generally* Def.'s Sep. St. Nos. 44-47). **<u>Sixth Cause of Action (Unjust Enrichment)</u>** The motion for summary adjudication of the sixth cause of action is GRANTED. The sixth cause of action alleges Defendant Bryant was unjustly enriched because Plaintiff conferred a benefit upon Defendant, for which Defendant has failed and refused to make restitution. (SAC ¶¶ 61-62.) Defendant argues unjust enrichment is not a stand-alone claim and, thus, fails as a matter of law. A motion for summary judgment and/or adjudication "necessarily includes a test of the sufficiency of the complaint" and its legal effect is the same as a demurrer or motion for judgment on the pleadings. (*See American Airlines, Inc. v. County of San Mateo* (1996) 12 Cal.4th 1110, 1118; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1375-1376, 1386; *Slaughter v. Legal Process & Courier Services* (1984) 162 Cal.App.3d 1236, 1244.) Although some courts have previously treated unjust enrichment as a stand-alone cause of action (*see, e.g., Kruss v. Booth* (2010) 185 Cal.App.4th 699, 729; *Federal Deposit Ins. Corp. v. Dintino* (2008) 167 Cal.App.4th 333, 347; *County of San Bernardino v. Walsh* (2007) 158 Cal.App.4th 533, 537-38; *Lectrodryer v. SeoulBank* (2000) 77 Cal.App.4th 723, 726), the majority of recent cases treat unjust enrichment as a remedy akin to restitution, not a separate cognizable cause of action. (*See, e.g., Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231; *Hill v. Roll Intern. Corp.* (2011) 195 Cal.App.4th 1295, 1307; *Levine v. Blue Shield of Calif.* (2010) 189 Cal.App.4th 1117, 1138; *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370; *Melchior v. New Line Productions, Inc.* (2003) 106 Cal. App. 4th 779, 793.) The

		appellate court explained in *Munoz v. MacMillan* (2011) 195 Cal.App.4th 648: "There is no freestanding cause of action for 'restitution' in California. [Citation omitted.] Common law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient; a typical cause of action involving such remedy is 'quasi-contract.'" (*Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 661.) Thus, there must be a valid cause of action on which to support the remedy of restitution or unjust enrichment. (*See Rutherford, supra,* 223 Cal.App.4th 221, 231 [construing the unjust enrichment claim to be a cause of action for quasi-contract claim seeking restitution].) Such bases include quasi-contract, fraud, duress, conversion, or similar conduct. (*Durrell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370; *McBride v. Boughton* (2004) 123 Cal.App.4th 379, 387-388.) The court finds Plaintiff's purported unjust enrichment claim to be duplicative of the quantum meruit claim and on this basis, grants the motion for summary adjudication. **<u>New Evidence on Reply</u>** Although new evidence is not generally permitted on reply (*see, e.g., Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538), new evidence may be considered when it responds to a new issue raised on opposition. (*See Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 241.) Here, Defendant's reply papers include Plaintiff's verified interrogatory responses. (Supp. Purcell Decl.) The court considered this new evidence, as Plaintiff's verified discovery responses show that Plaintiff attempts to create an issue of fact by declaration that contradicts her prior discovery responses. Defendant to give notice.
14	Mackey vs. Olejniczak	**TENTATIVE RULING:** For the reasons set forth below, Marc Lazo and K&L Law Group, P.C.'s motion to be relieved as counsel for Plaintiff Daniel Mackey is DENIED, without prejudice. Rule of Court 3.1362 sets forth the requirements for a motion to be relieved as counsel: (1) a notice of motion and motion to be relieved as counsel must be directed to the client and be made on Judicial Council form MC-051; (2) the motion must be accompanied by a declaration on Judicial Council form MC-052 and state in general

		terms and without compromising attorney-client confidentiality why the motion is being brought; (3) the notice of motion, motion, declaration, and the proposed order must be served on the client and all other parties who have appeared in the case; (4) if served on the client by mail, it must be accompanied by a declaration stating facts to show either: (a) the service address is the current residence or business address of the client or (b) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable effort to do so within 30 days before filing the motion; (5) the proposed order must be prepared on Judicial Council form MC-053, specify all hearing dates scheduled, and lodged with the court with the moving papers; (6) after the order is signed, a copy of the order must be served on the client and all parties that have appeared in the case; and (7) the court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Rules of Court, rule 3.1262.) As this court previously held, Counsel failed to attest that he served the client either personally or by mail at the client's last known address, as required by ¶ 3 of the form declaration, Form MC-052. Furthermore, the proof of service only attests to electronic service. On 5/6/26, this court continued the motion based on these defects, and ordered Moving Counsel to file a Proof of Service at least 9 court-days prior to the next hearing showing proper service on the client and all parties. (See 5/6/26 Order [ROA 32]). Moving Counsel failed to file the proof of service at least 9 court days prior to the continued hearing date. While Moving Counsel provided a notice of ruling of the 5/6/26 Order, the proof of service for this notice only depicts service to Defendant's counsel, and not to the client. (See ROA 34). Accordingly, the motion is denied without prejudice as to refiling. Moving counsel shall give notice.
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